

TENTATIVE RULING

Case: **Espinoza Bail Bonds v. Chuang, et al.**
Case No. CV-2021-0958

Hearing Date: **February 19, 2026** **Department Four** **9:00 a.m.**

Motion to continue trial:

The Court, in its discretion, will consider Espinoza Bail Bonds, Inc., and Jose Espinoza's late-filed opposition. (Cal. Rules of Court, rule 3.1300(d); *Rancho Mirage Country Club Homeowners Assn. v. Hazelbaker* (2016) 2 Cal.App.5th 252, 262 [stating that "a trial court has broad discretion to accept or reject late-filed papers."].)

Defendants Linda F. Chuang, Ronald Y. Chuang and Ted Chuang's request for judicial notice is **DENIED**. (Evid. Code, §§ 452, 453.) The proffered documents are not relevant to the Court's determination of this motion. (See *People v. Rowland* (1992) 4 Cal.4th 238, 268, fn. 6; see also *Malek Media Group LLC v. AXQG Corp.* (2020) 58 Cal.App.5th 817, 825; *People ex rel. Lockyer v. Shamrock Foods Co.* (2000) 24 Cal.4th 415, 422 [a precondition to the taking of judicial notice in either its mandatory or permissive form must be relevant to a material issue].)

Defendants' motion to continue trial date currently set for February 23, 2026 is **DENIED**. (Cal. Rules of Court, rule 3.1332.) The Court finds that defendants have not met their burden to show good cause for a trial continuance. (Cal. Rules of Court, rule 3.1332, subds. (b), (c)(7), (d); *Forthmann v. Boyer* (2002) 97 Cal.App.4th 977, 985, citing *Denham v. Superior Court* (1970) 2 Cal.3d 557, 566; see *Cotton v. Starcare Medical Grp., Inc.* (2010) 183 Cal.App.4th 437, 443 – 444; see generally L. Chaung Decl.) The Court further finds that Mr. Espinoza is not a party to the only remaining operative pleading in this action, plaintiff Espinoza Bail Bonds, Inc.'s first amended complaint; thus, Mr. Espinoza's standing has no relevance to any issue before the Court. (See Minute Orders, dated February 27, 2024, July 19, 2024, and December 4, 2025.)

If no hearing is requested, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

Motion for judgment on the pleadings dismissing Jose Espinoza's cross-complaint:

The Court, in its discretion, will consider Espinoza Bail Bonds, Inc., and Jose Espinoza's late-filed opposition. (Cal. Rules of Court, rule 3.1300(d); *Rancho Mirage Country Club Homeowners Assn. v. Hazelbaker* (2016) 2 Cal.App.5th 252, 262 [stating that "a trial court has broad discretion to accept or reject late-filed papers."].)

The Court notes that defendants Linda F. Chuang, Ronald Y. Chuang and Ted Chuang failed to properly meet and confer "in person or by telephone, or by video conference" prior to the filing of this motion for judgment on the pleadings. (Code Civ. Proc., § 439; L. Chaung Decl., ¶ 4, Exhibit A.) However, the Court may not deny a motion for judgment on the pleadings for failure to meet and confer. (Code Civ. Proc., § 439, subd. (a)(4); *Dumas v. Los Angeles County Bd. of Supervisors* (2020) 45 Cal.App.5th 348, 355.)

Defendants Linda F. Chuang, Ronald Y. Chuang and Ted Chuang's request for judicial notice is **DENIED**. (Evid. Code, §§ 452, 453.) The proffered documents are not relevant to the Court's determination of this motion. (See *People v. Rowland* (1992) 4 Cal.4th 238, 268, fn. 6; see also *Malek Media Group LLC v. AXQG Corp.* (2020) 58 Cal.App.5th 817, 825; *People ex rel. Lockyer v. Shamrock Foods Co.* (2000) 24 Cal.4th 415, 422 [a precondition to the taking of judicial notice in either its mandatory or permissive form must be relevant to a material issue].)

Defendants' non-statutory motion for judgment on the pleadings dismissing Jose Espinoza's cross-complaint with prejudice for lack of standing is **DENIED AS MOOT**. (Code Civ. Proc., § 438.) The Court struck the cross-complainant filed on December 6, 2023, as to Mr. Espinoza, on February 27, 2024. (Minute Order, dated February 27, 2024.)

If no hearing is requested, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

Motion for judgment on the pleadings dismissing plaintiff Espinoza Bail Bonds, Inc.'s first amended complaint:

The Court, in its discretion, will consider Espinoza Bail Bonds, Inc., and Jose Espinoza's late-filed opposition. (Cal. Rules of Court, rule 3.1300(d); *Rancho Mirage Country Club Homeowners Assn. v. Hazelbaker* (2016) 2 Cal.App.5th 252, 262 [stating that "a trial court has broad discretion to accept or reject late-filed papers."].)

The Court notes that defendants Linda F. Chuang, Ronald Y. Chuang and Ted Chuang failed to properly meet and confer "in person or by telephone, or by video conference" prior to the filing of this motion for judgment on the pleadings. (Code Civ. Proc., § 439; L. Chaung Decl., ¶ 4, Exhibit A.) However, the Court may not deny a motion for judgment on the pleadings for failure to meet and confer. (Code Civ. Proc., § 439, subd. (a)(4); *Dumas v. Los Angeles County Bd. of Supervisors* (2020) 45 Cal.App.5th 348, 355.)

Defendants request for judicial notice of documents 1 through 7 is **GRANTED**. (Evid. Code, §§ 452, subds. (c), (d), (h), 453.)

Defendants request for judicial notice of documents 8 and 9 is **DENIED**. The proffered documents are not relevant to the Court's determination of this motion. (See *People v. Rowland* (1992) 4 Cal.4th 238, 268, fn. 6; see also *Malek Media Group LLC v. AXQG Corp.* (2020) 58 Cal.App.5th 817, 825; *People ex rel. Lockyer v. Shamrock Foods Co.* (2000) 24 Cal.4th 415, 422 [a precondition to the taking of judicial notice in either its mandatory or permissive form must be relevant to a material issue].)

The Court proposes to take judicial notice of the following documents contained in the Court's own file: Linda Chuang's declaration in support of special motion to strike against Jose Espinoza's cross-complaint, filed January 30, 2024, Exhibits 2 and 8; Ronald Chuang's declaration in support of special motion to strike against Jose Espinoza's cross-complaint, filed January 30, 2024, Exhibit 2. (Evid. Code, §§ 452, subd. (d), 455, subd. (a).) The Court shall afford each party reasonable opportunity before the cause is submitted for decision by the Court

to present to the Court information relevant to: (1) the propriety of taking judicial notice of the matter; and (2) the tenor of the matter to be noticed. (Evid. Code, § 455, subd. (a).)

Defendants' non-statutory motion for judgment on the pleadings dismissing Espinoza Bail Bonds, Inc.'s first amended complaint with prejudice for lack of standing is **DENIED**. (Code Civ. Proc., § 438.) Defendants have not shown that the entity who executed the bail bond agreement and associated indemnity agreements – Espinoza Bail Bonds [versus Espinoza Bail Bonds, Inc.] – was not licensed to produce bail bonds at the time these agreements were executed. (FAC, ¶ 7; Defendants' anti-SLAPP motion, filed January 30, 2024, L. Chuang Decl., Exhibits 2, 8; Defendants' anti-SLAPP motion, filed January 30, 2024, R. Chuang Decl., Exhibit 2, see RJN, document number 2.)

If no hearing is requested, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

TENTATIVE RULING

Case: Hecht v. Wells Fargo Bank et al.
Case No. CV-2025-1781

Hearing Date: February 19, 2026 **Department Eleven** **9:00 a.m.**

Defendant Barrett Daffin Frappier Treder & Weiss, LLP's request for judicial notice is **DENIED**. (Evid. Code, §§ 452, 453.) The proffered documents are not relevant to the Court's determination of this motion. (See *People v. Rowland* (1992) 4 Cal.4th 238, 268, fn. 6; see also *Malek Media Group LLC v. AXQG Corp.* (2020) 58 Cal.App.5th 817, 825; *People ex rel. Lockyer v. Shamrock Foods Co.* (2000) 24 Cal.4th 415, 422 [a precondition to the taking of judicial notice in either its mandatory or permissive form must be relevant to a material issue].)

Defendant's unopposed demurrer to complaint is **OVERRULED** in its entirety. (Code Civ. Proc., § 430.10, subd. (e).) The Court finds that the legal authority identified by defendant fails to support that defendant may bring this [second] demurrer to plaintiff Eileen Hecht's original complaint after the identical demurrer, filed on November 4, 2025, was previously overruled. (See *County of El Dorado v. Superior Court* (2019) 42 Cal.App.5th 620, 625; citing *Bennett v. Suncloud* (1997) 56 Cal.App.4th 91, 97 & fn. 1 ["...a defendant cannot demur on the same grounds to a previous demurrer that was overruled."]; Minute Order, dated November 12, 2025.)

If no hearing is requested, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.